



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Lonnie Olson, Planner I
Subject: UDC-23-00066 / Lot 1 and 2, Block 1, Twin 22 Subdivision Zoning Map Amendment
Date: April 10, 2023

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 4/10/2023
- Public Services Committee 4/18/2023
- Second reading 4/24/2023
- Public Services Committee 5/2/2023
- Third and final reading 5/8/2023

Planning Commission Recommendation:

The Planning Commission heard this item at their April 3, 2023 meeting and recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM MR MEDIUM-DENSITY RESIDENTIAL TO NR-2 NEIGHBORHOOD RESIDENTIAL – MEDIUM DENSITY FOR LAND LOCATED ON LOTS 1 AND 2, BLOCK 1, TWIN 22 SUBDIVISION."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on April 3, 2023, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zoning map amendment that is the subject of this ordinance, and recommended approval of said zoning map amendment.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 1 and 2, Block 1, Twin 22 Subdivision, Cheyenne, Wyoming, is hereby changed to NR-2 Neighborhood Residential – Medium Density.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION

APRIL 3, 2023

STAFF REPORT

FILE: UDC-23-00066: Lots 1 & 2, Block 1, Twin 22 Subdivision – Zoning Map Amendment (zone change)

REQUEST: A request to rezone approximately 0.18 acres of land from MR Medium-density Residential to NR-2 Neighborhood Residential – Medium Density

LOCATION: Lots 1 & 2, Block 1, Twin 22 Subdivision

APPLICANT: Brandon Swain

AGENT: Brandon Swain

OWNER: Brandon Swain

ZONING: MR Medium-density Residential

FUTURE LAND USE: Urban Residential

PURPOSE: To allow DD8 lots as a use by right

PREPARED BY: Lonnie Olson, Planner I



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lots 1 and 2, Block 1, Twin 22 Subdivision to NR-2 Neighborhood Residential – Medium Density as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from MR Medium-Density Residential to NR-2 Neighborhood Residential – Medium Density for 0.18 acres of land. The land is currently vacant and is made up of two parcels under the same ownership. The properties are anticipated to have a single-family dwelling built on each lot.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Urban Residential	MR Medium-density Residential	Vacant Lot
North	Urban Residential	MR Medium-density Residential	Single-family residential
South	Urban Residential	MR Medium-density Residential	Single-family residential
East	Urban Residential/ Mixed-Use Residential	CB Community Business	Parking Lot/ Medical Care, Clinic and Office
West	Urban Residential	MR Medium-density Residential	Single-family residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure. Plan Cheyenne also encourages infill development (although it is not the intent of the plan to change existing, stable neighborhoods).

The Future Land Use Designation for this property is Urban Residential and the surrounding area is Urban Residential and Mixed-Use Residential. According to the comprehensive plan the

optimal City zones for the subject property's future land use designation is any one of the residential zones, including NR-2.

Based on the policies and future land use map, NR-2 zoning is appropriate at this location.

The proposed zone change **complies** with review criterion 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

Nearby properties to the north, west, and south are zoned MR. MR and NR-2 zones are medium-density residential zones. The difference is that NR-2 zoning anticipates alley-loaded development, allows smaller lots, and has a higher design standard. NR-2 zoning is compatible with surrounding zoning.

Property to the east is zoned CB and is a part of a commercial corridor along a major throughfare. The Comprehensive Plan encourages commercial activities which serve neighborhoods, the community, and region. The Comprehensive Plan encourages the blending of CB zones with nearby neighborhoods in terms of scale, design, signage, and lighting. The NR-2 zone allows for slightly more density which can help aid the transition from the CB zone into the residential neighborhood. NR-2 zoning is compatible with surrounding zoning.

The proposed zone change for the subject property **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The MR, as put forward in the UDC, is intended for larger-block, front-loaded, suburban style development patterns (like Saddle Ridge or The Pointe). NR-2 zoning is intended for smaller-block, rear-loaded, compact development patterns (like what is found in the Avenues). Unfortunately, after the adoption of the UDC, a comprehensive zoning map amendment was not pursued, or neighborhoods like this one may have been changed to the new NR-2 zone. In short, the proposed NR-2 zone is more consistent with the existing development pattern of this neighborhood than the current MR zone.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

The zone change is occurring in a pre-existing neighborhood. No changes to the street network are proposed. The neighborhood meets the smaller block sizes anticipated for NR-2 zoning.

Accesses will not be changed with the zone change.

Infrastructure (streets and utilities) exist in the area.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The NR-2 zone is intended for a medium density and mix of dwelling types that promote a consistent neighborhood character, with a compact development pattern and highly connected street network. The existing neighborhood meets these objectives.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The NR-2 zone allows a variety of residential uses (as does the current MR zone). The applicant intends to build two single family homes on DD8 lots which is permitted in the NR-2 zone. Should this particular project not move forward with the two single-family homes, the NR-2 zoning provides a few more options for infill residential development.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

Proposal meets comprehensive plan principles. The entire area should be this zone based on the physical form of the neighborhood

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, review comments were received expressing the appropriateness of the NR-2 zone at this location.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The NR-2 zone is appropriate based on the future land use map, surrounding zoning, and surrounding development patterns.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

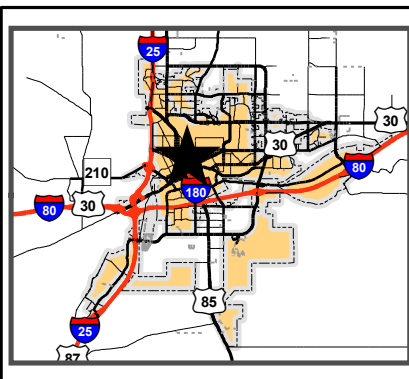
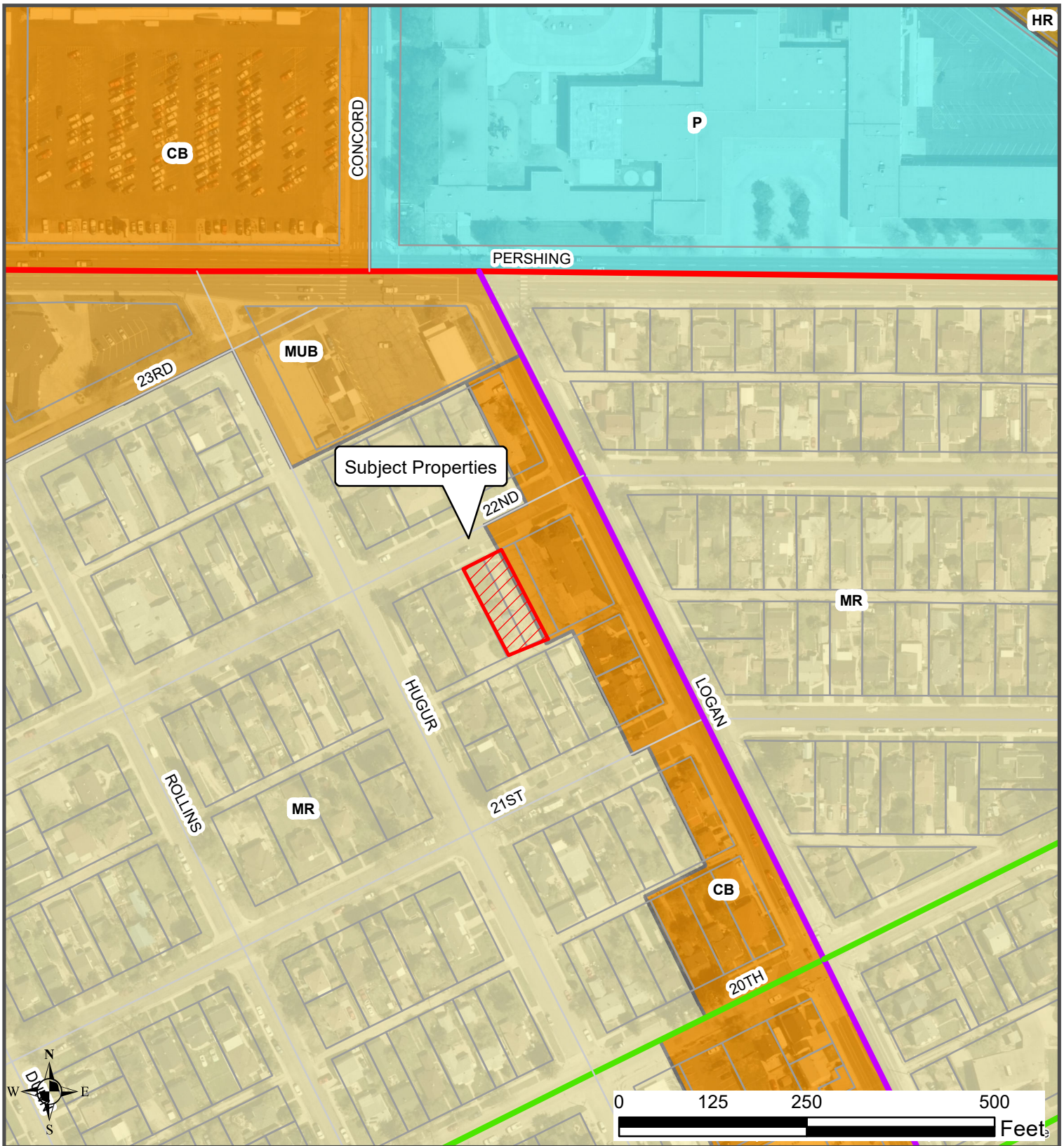
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from MR to NR-2.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Maps

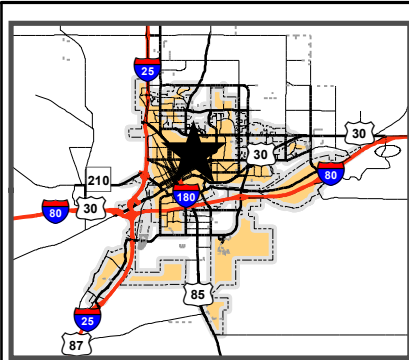
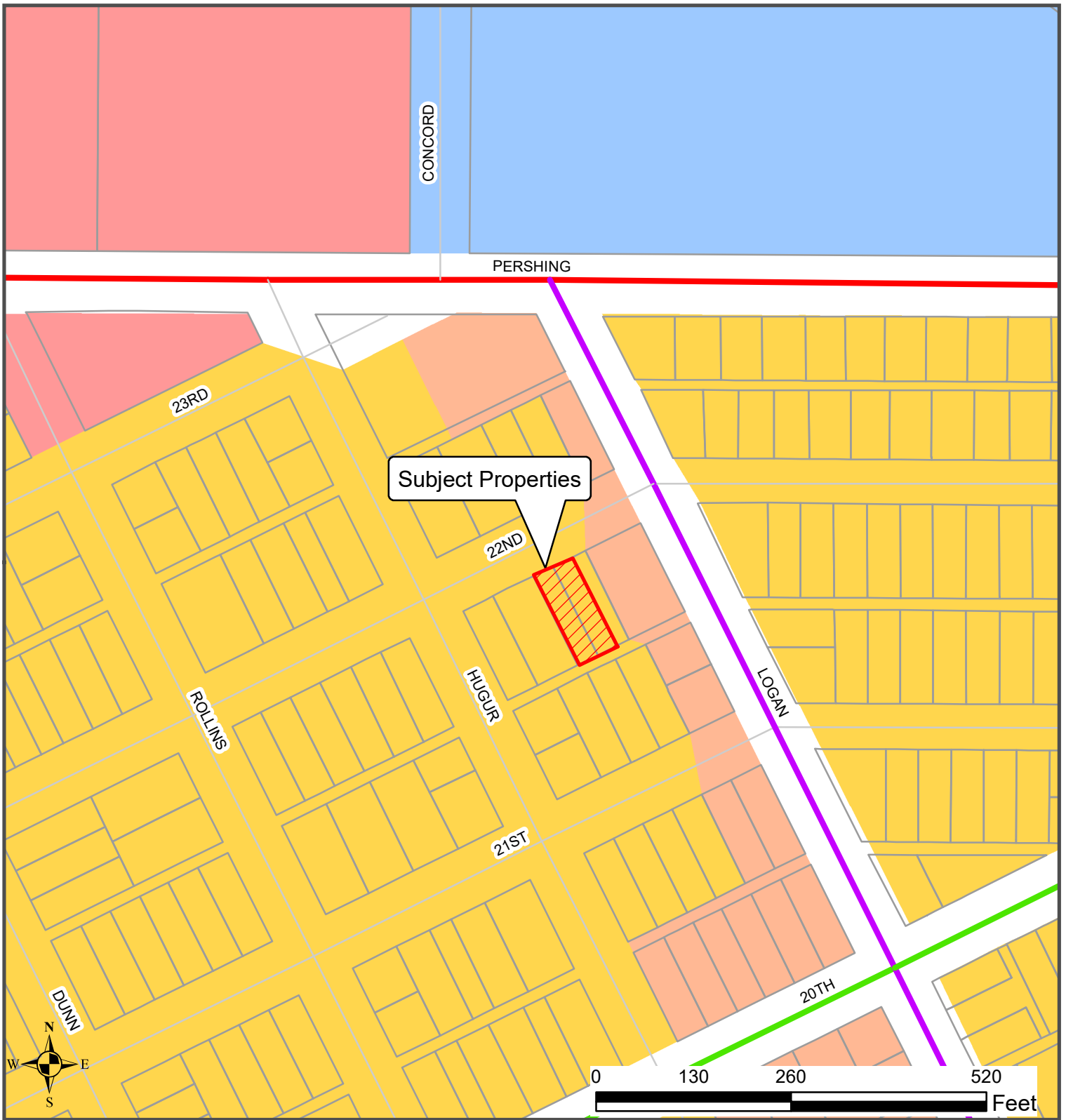


Attachment 1: Zoning Map UDC-23-00066

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

- Nov19_CityLimits
- Interstate
- Principal Arterial
- Minor Arterial
- Major Collector
- Minor Collector
- Local
- Private
- Platted not built
- HR / High Density Residential
- MR / Medium Density Residential
- LR / Low Density Residential
- NR-2 / Neighborhood Residential - Med. Density
- NR-3 / Neighborhood Residential - High Density
- AR / Agricultural Residential
- A-1 / Agricultural and Rural Residential
- A-2 / Agricultural
- AG / City Agricultural
- MUR / Mixed Use Residential Emphasis
- CBD / Central Business District
- CB / Community Business
- NB / Neighborhood Business
- MU / Mixed Use - County
- MUB / Mixed Use Business Emphasis
- MUE / Mixed Use Employment Emphasis
- HI / Heavy Industrial
- LI / Light Industrial
- P / Public
- AD / Airport District
- PUD / Planned Unit Development
- X / Exempt



Attachment 2: Land Use Map UDC-23-00066

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		

Planning and Development: Zoning Map Amendment Application

Submission date: **1 March 2023, 12:19PM**
Receipt number: **49**
Related form version: **10**

General Information

Applicant Name: **Brandon Swain**

Applicant Address: **2802 Deming Blvd**

Applicant City: **Cheyenne**

Applicant State: **WY**

Applicant Zip Code: **82001**

Applicant Phone: **307-214-9634**

Applicant Email: **Bswainy23@gmail.com**

Representative Name: **Brandon Swain**

Representative Address: **2802 Deming Blvd**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82001**

Representative Phone: **307-214-9634**

Representative Email: **Bswainy23@gmail.com**

Owner Name: **Brandon Swain**

Owner Address: **2802 Deming Blvd**

Owner City:	Cheyenne
Owner State:	WY
Owner Zip Code:	82001
Owner Phone:	307-214-9634
Owner Email:	Bswainy23@gmail.com
Who is the primary contact regarding this application?	Owner
Letter of Authorization	Scanned document from RE_MAX Capitol Properties (13).pdf
Project Location (Street Address or General Location):	Just West of the Logan Ave/E 22nd St intersection
Assessor's Parcel ID number(s)	14663226000100 and 14663226000200
Total Project Area	7916
Existing Zoning	MR - Medium-density Residential
Requested Zoning	NR-2 - Neighborhood Residential - Medium Density

Application-Specific Questions

Written Statement	The proposed zoning amendment will allow construction of a single family dwelling (DD8) on each lot. The current MR zoning only allows a twinhome style of construction with a partition wall on the middle lot line. After careful consideration I believe the project's highest and best use will be the single family detached DD8 dwelling per lot. The only DD8 use by right is NR2 and NR3. The lots are already platted and if approved the density remains the same. FYI the supporting document photo is not specific to the site it is an example of what I'd like to build. Thank you, Brandon
Zoning Map	23096 ZC-PAPER.pdf
Notification Letter	Twin 22 letter.pdf
Supporting Documents / Information	Twin 22 idea.jpg

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.	Acknowledgement of this review criteria
The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.	Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

Name of signatory: Brandon Swain

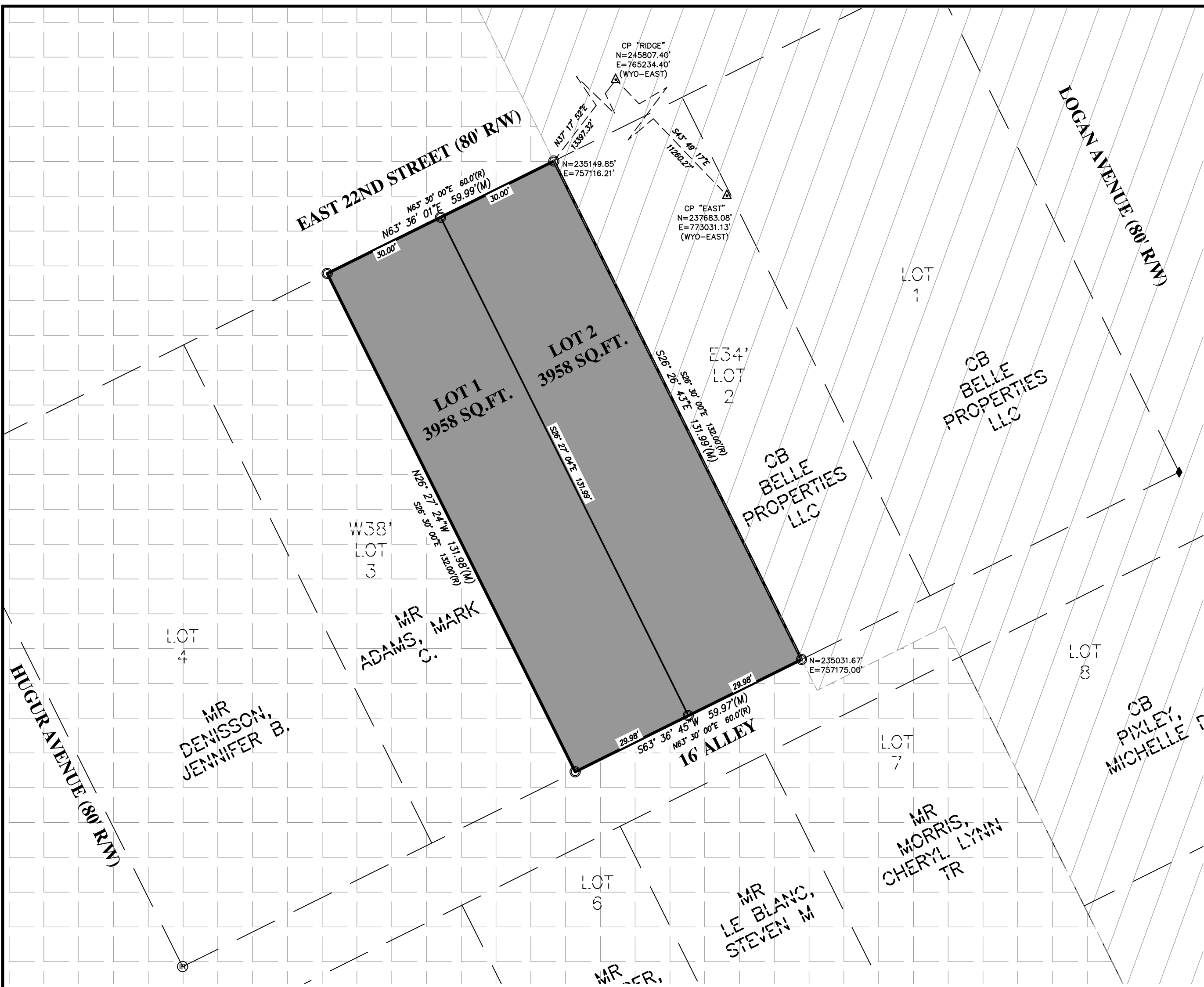
A handwritten signature in black ink, appearing to read 'Brandon Swain', with a stylized, looped design.

[Link to signature](#)

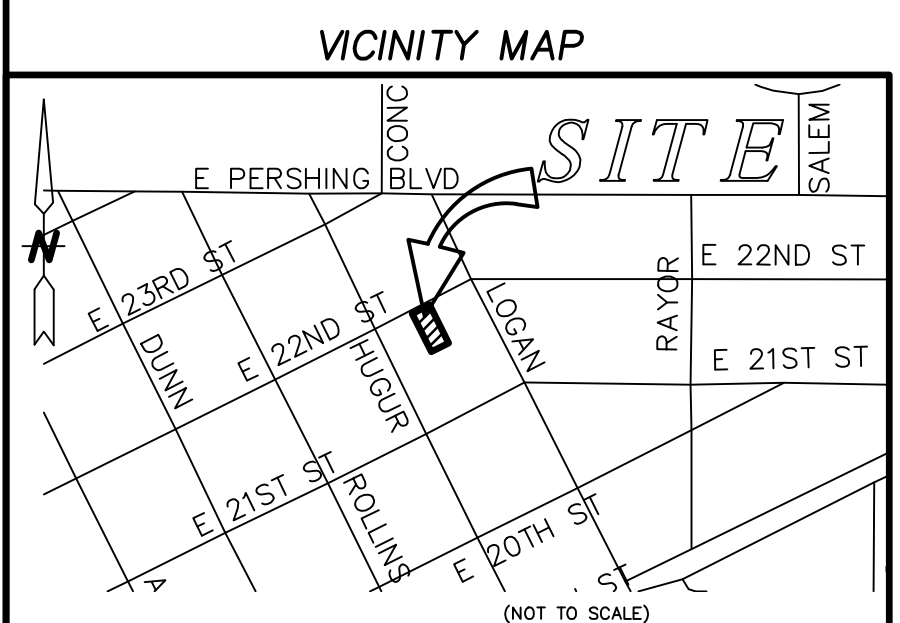
Please enter an email address for an email receipt.

Bswainy23@gmail.com

© COPYRIGHT 2022 STEIL SURVEYING SERVICES, LLC ALL RIGHTS RESERVED

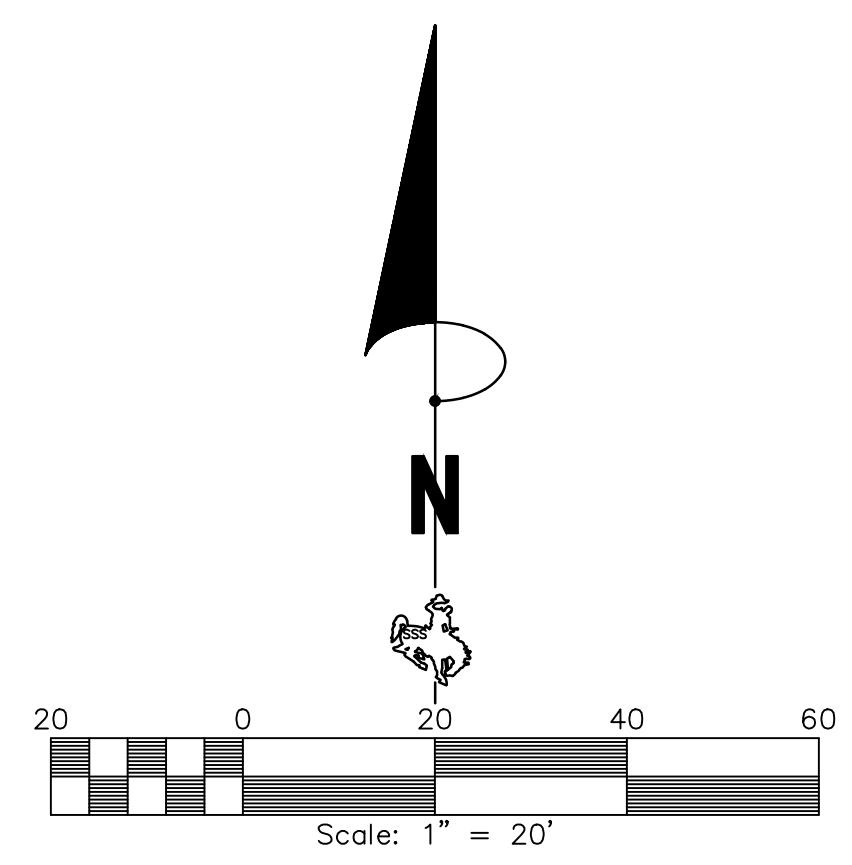
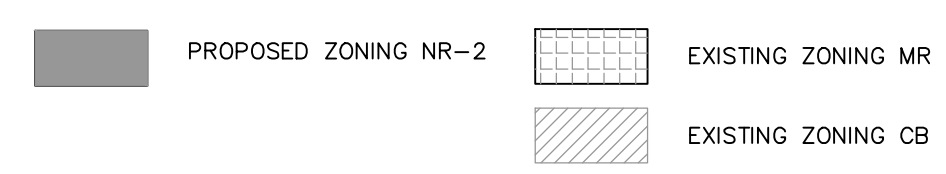


EXISTING ZONING - MR
PROPOSED ZONING - NR2



BASIS OF BEARINGS:
WYOMING STATE PLANE COORDINATES,
EAST ZONE, NAD83-2011,
US SURVEY FEET, DISTANCES ARE GRID
DISTANCES.

LEGEND



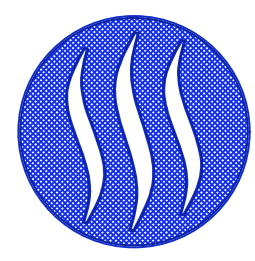
CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.



**ZONE CHANGE
EXHIBIT**

FOR LOT 1 AND LOT 2, BLOCK ONE
TWIN 22 SUBDIVISION,
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING
PREPARED JANUARY, 2022



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1102 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 634-7273
756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 322-9789
www.SteilSurvey.com • info@SteilSurvey.com

REVISED: 1/24/2023
23096 ZC.DWG